IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.77558 of 2026

CNR No. BRHC011083572026

Arising Out of PS. Case No.-147 Year-2026 Thana- KAUWAKOL District- Nawada

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Sumant Kumar @ Naga Mahto @ Jaymant Kumar @ Nago Mahto Son of Harihar Mahto Resident of Village - Sokhodewra, Police Station - Kawakol, District - Nawada.

... ... Petitioner/s

Versus

The State of Bihar

... ... Opposite Party/s

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Appearance :
For the Petitioner/s : Mr. Birendra Kumar, Advocate
For the Opposite Party/s : Ms. Sucheta Yadav, A.P.P.

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CORAM: HONOURABLE MR. JUSTICE SATYAVRAT VERMA

ORAL ORDER

2 30-10-2026 1. Heard learned counsel for the petitioner and learned A.P.P. for the State.

2. The petitioner seeks bail in a case registered for the offence punishable under Section 30(a) of the Bihar Prohibition and Excise (Amendment) Act, 2022.

3. Learned counsel for the petitioner submits that petitioner is in custody since 20.07.2026 and allegation is of recovery of 22.5 litres of liquor along with 10,000 litres of Fermented Jawa Mahua from eight kiln.

4. Learned counsel appearing on behalf of the petitioner submits that at para 3 it is pleaded that petitioner has antecedent of one case under the Excise Act, when he has antecedent of five cases on which learned A.P.P. for the State

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submits that a person who does not approach the Court with clean hands should not be shown any leniency.

5. At this stage, learned counsel for the petitioner seeks permission to withdraw the regular bail application with liberty to the petitioner to renew his prayer for bail after framing of charge.

6. Permission is accorded.

7. Accordingly, the regular bail application is dismissed as withdrawn.

(Satyavrat Verma, J)

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